FORBES SHIRE COUNCIL

FORM

Application to Vary a Development Standard

Written application providing grounds for variation to develop standards.

This form is applicable where a variation to the *Forbes Local Environmental Plan 2013* is sought. It is to be submitted together with the development application (refer to EP&A Regulation 2000 Schedule 1 Forms).

APPLICATION

1. **What is the address of the property?**

2. **What is the name of the environmental planning instrument that applies to the land?**
   Forbes Local Environmental Plan 2013:

3. **What is the zoning of the land?**

4. **What are the objectives of the zone?**

5. **What is the development standard being varied, and what is the relevant clause? Eg. height, minimum lot size**

6. **What are the objectives of the development standard?**

7. **What is the numeric value of the development standard in the environmental planning instrument?**

8. **What is the proposed numeric value of the development standard in your development application?**

9. What is the percentage variation (between your proposal and the environmental planning instrument?

Note: If the variation is greater than 10% the Development Application is required to be referred to a Council Meeting for determination.

10. How is strict compliance with the development standard unreasonable or unnecessary in this particular case?

11. How would strict compliance hinder the attainment of the objects specified in Section 5(a)(i) and (ii) of the Act.

Note: If more than one development standard is varied, an application will be needed for each variation (eg FSR and height).

12. Is the development standard a written (non-numerical) control? Give details.

Note: Any non-numerical variation requires referral to a Council Meeting for determination.

14. Would strict compliance with the standard, in your particular case, would be unreasonable or unnecessary? Why?

15. What are the environmental planning grounds that justifies contravening the development standard?